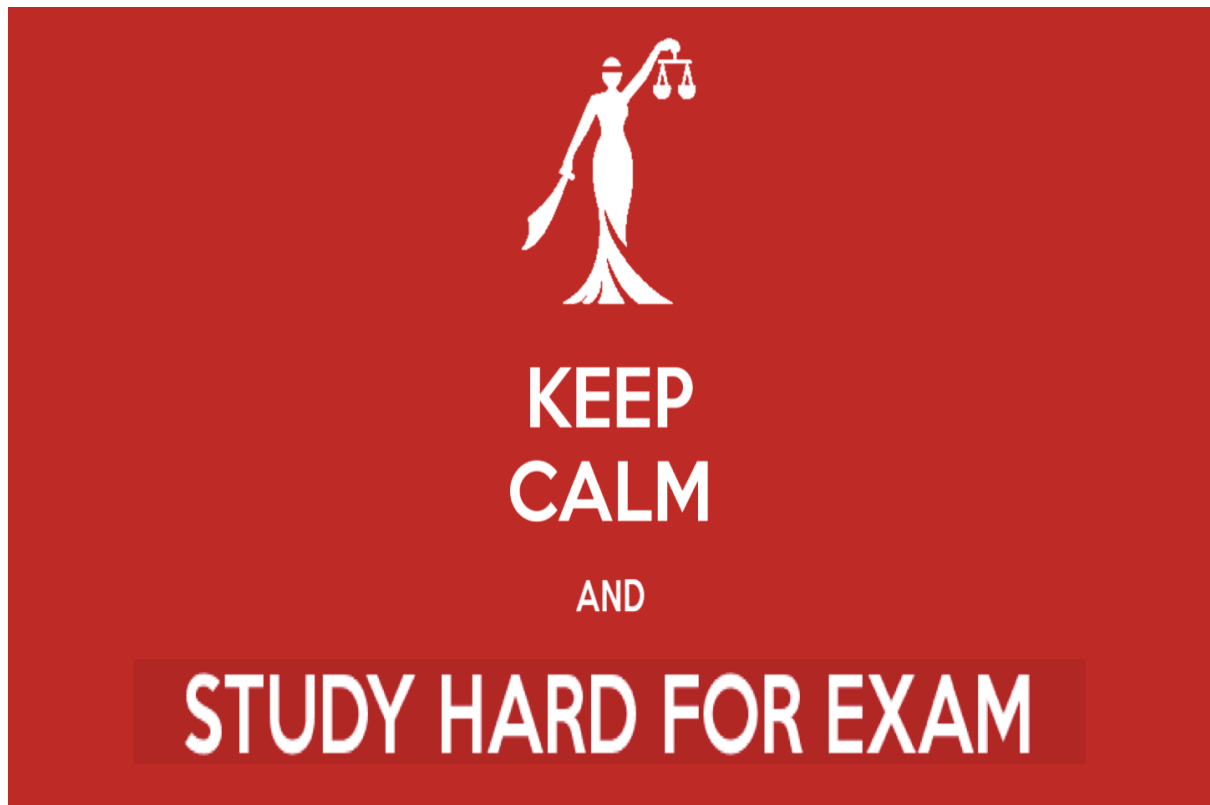




Study Guide

Semester 2 Exam Information:

- Exam format
- Exam techniques

Study Techniques

Topic Guide:

- Democracy
- Laws: Making & Interpreting
- The Judiciary
- Representation & Participation
- Elections

Constitutional Sections

Political Terminology

Legal Terminology

Semester 2 Exam Information

Exam format:

Section	Number of questions available	Number of questions to be answered	Suggested working time (minutes)	Marks available	Percentage of exam
Section One: Short response	4	3	45	30	30
Section Two: Source analysis	2	1	35	20	20
Section Three: Essay Part A Unit 1	2	1	100	50	50
Part B Unit 2	2	1			
					100

Exam Techniques:

- Listen to the examination instructions.
- Utilise reading time effectively:
 - Choose your short answer questions
 - Choose your essay questions
 - Choose your source (based on c/d questions)
 - Read a/b questions for your chosen source
 - Read your chosen source
- Suggestion: Start the source analysis section first, to maximise your working time.
- Read each question carefully:
 - Break the question up; Are there multiple components?
 - Understand what the question is asking you, before committing pen to paper
 - Once you've answered the question – read the question again to double check that you have answered it

- Wherever possible, provide an example to illustrate your understanding.
- How to answer short answer questions:
 - Use the language from the question to start your question off
 - Signpost in the same style as the question
 - Answer according to the question:
 - E.g.: Distinguish
 - A is defined as....
 - B is defined as....
 - The distinguishing feature between A and B is.....
 - E.g.: Evaluate
 - Extent to which = strong; moderate; weak; greater; lesser
 - Weigh up the arguments for/against
 - Final sentence must answer the question (based on the evidence you have provided).
- How to answer source analysis questions:
 - As per above
 - Choose the best (most obvious) quotes to illustrate you a and b questions
 - Always quote the source for a and b questions (regardless of whether the question asks you to do so, or not).
 - For b questions, you must explain how your chosen quote illustrates your answer.
Note: This explanation must not simply be a rewording of the quote.
 - When tasked with providing two (or more) features/ways/methods/elements etc – be sure to state features which are distinctly different – otherwise you run the risk of providing only one feature instead of two.
- How to answer essay questions:
 - Always write an essay plan – and cross off your points on your plan as you write them in your essay. This will ensure that you write in a sequential/chronological manner and will make sure that you don't forget any important elements.
 - Always write in 3rd person for academic writing.
 - Write like an alien is reading your work – provide context and explain terms.
 - Introduction:

- Use the language from the question
 - A general statement followed by a specific statement
 - Note: Think hypothesis NOT observation. It shouldn't sound like a conclusion.
- Body
 - At the end of each paragraph – be sure to refer back to the question
 - Use question language throughout
- Conclusion
 - Answer the question
 - Must have an air of finality
 - Suggestion: Look to the future (change/reform etc)
- Additional notes:
 - Handwriting must be legible
 - Clearly label questions in supplementary working paper
 - Always have a go
 - If you finish early – go over your answers – never just sit there!

Study Techniques

- Write a study guide for each chapter in your textbook OR alternatively, per topic (as outlined above). Consolidate notes into 1x A4 page per chapter.
- Answer the questions at the end of each chapter in your textbook.
- Read answer guides for Tasks 1-9.
- Make a list of the feedback you have received from past assessments – to remind yourself 'what to do' going forward.
- Using a stopwatch/timer is important in the lead up to your exams, after all, your exams are time sensitive. Time yourself mind mapping or making a list of key points for each topic.
 - E.g.: In 5 minutes – outline the legislative process
 - Note: Once your time has run out, in a different coloured pen, add any additional information that you forgot/left out. Repeat.
- Prepare a detailed essay plan on all the major topics
- Remember: Practice makes perfect!

Topic Guide

Democracy

Operating principles of liberal democracy:

- Equality of political rights
- Majority rule
- Political participation
- Political freedom
- Additional principles:
 - The Rule of Law
 - Separation of powers

Australia's system of government:

- Influences:
 - Westminster (UK)
 - Conventions
 - English Common law
 - Washington (USA)
 - Canada
 - Switzerland
- Representative democracy
- Responsible parliamentary government (s.64)
 - IMR v CMR
 - The Executive: Constitutional; Political; Administrative
- Constitutional monarchy (s.1)
- Constitutionalism
 - Separation of powers
- Federalism
 - Federal balance of power: Intention of the Founding Fathers v Today's model
 - Division of powers
 - C/W Sovereign powers (Exclusive)
 - s.52

- s.90
- s.115
- s.51*
- Concurrent
 - s.51*
- Residual
 - Note: s.108
- Federation
- Referendum process (s.128)

Democracy v Autocracy:

- Democratic features
- Autocratic features
 - Case study: China

Laws: Making & Interpreting

Types of laws: Definition & examples

- Superior: Constitution
- Ordinary: Statutory law; Common law
- Subordinate: Delegated legislation

The Legislature

- Role: Make; Amend; Repeal, Consolidate; Respond to court decisions and judge made common law; Abrogation; Codifying legislation
- Legislative Process
 - Initiation
 - First Reading
 - Second reading
 - Committee stage
 - Third Reading
 - Royal Assent (s.58)

- Proclamation
- The role of the Federation Chamber
- Appropriation bills (s.53 & 54)
 - Case Example: Federal Budget
- Double dissolution (s.57)
 - Case Example: 2016 ABCC
- Executive dominance: Tactics
 - Gags
 - Guillotines
 - Flood-gating

Statutory Interpretation

- Definition
- The Need for Interpretation
 - Word meanings
 - Time and changing circumstances
 - Drafting error
- Inconsistencies and Contradictions
- Statutes are in futuro
- Rules of Interpretation
 - Literal
 - Golden
 - Purpose (mischief)
- Judicial Discretion
 - Literalist or legalist interpretations (conservative)
 - Activist interpretations

Legal systems:

- Civil law system
- Common law system

The Doctrine of Precedent:

- Stare decisis
- Precedent
- Ratio decidendi
- Obiter dicta
- Court hierarchy
 - Binding v persuasive
- How common law evolves:
 - Distinguishing
 - Case study: Donoghue v Stevenson (1932)
 - Overturning/overruling
 - Case study: Mabo v Qld (No.2) (1992)
 - Reversing
 - Case study: Wilson v Bauer Media (2017 and 2018)
 - Disapproving

The Judiciary

Adversarial v Inquisitorial Trial Systems:

- Assumption about finding truth
- The role of the parties
- The role of the judge
- The burden and standard of proof
- The need for legal representation
- The rules of evidence and procedure
- Strengths v weaknesses

Civil Trials:

- Alternative Dispute Resolution (ADR)
 - Forms:
 - Negotiation
 - Mediation

- Conciliation
 - Arbitration
 - Strengths v weaknesses
- Civil law (private law)
 - Torts
 - Contracts
 - Other private law matters
- Onus of proof
- Standard of proof
- Types of remedies
 - Damages
 - Injunctions
 - Specific Performance
 - Restitution
 - Rescission

Criminal Trials:

- Criminal law (public law)
 - Summary offences
 - Indictable offences
- Rights of the Accused
 - Right to silence
 - Presumption of innocence
 - Due process
 - Legal representation
 - s.80
- Onus of proof
- Standard of proof
- Trial Procedure:
 - Pre-Trial
 - Role of the Police v Role of the DPP
 - Trial
 - Strict rules of evidence and procedure

- Post-Trial
 - Sentencing aims:
 - Retribution
 - Deterrence
 - Community Protection
 - Rehabilitation
 - Sentencing factors:
 - Mitigating v aggravating circumstances
 - Sentencing options:
 - Custodial
 - Community based sanctions
 - Home detention
 - Fines
 - Suspended sentences and good behaviour bonds
- Mandatory sentencing
 - Arguments for and against
- Juries
 - Role
 - Advantages v disadvantages of jury trials
- Appeals
- Miscarriages of Justice
 - Case example

Representation & Participation

Individuals

- Definition
 - Incl. Independent MP
- Participation:
 - Individually:
 - Voting in elections
 - Running as a candidate
 - Working for an electoral commission

- Initiating a court case
- Other forms
- Collectively:
 - Political party
 - Pressure group

Political Parties

- Definition
- Types
 - Major
 - Minor
 - Micro
- Representation
 - Wide variety of choice – across the political spectrum
 - Partisan
 - Women
- Participation
 - Candidature
 - Parliamentary strategies
 - Preference guidance and affiliations
 - Campaign strategies
 - Court cases

Pressure Groups

- Definition
- Types
 - Interests/sectional
 - Cause based
 - Hybrid
- Representation
 - Raising awareness
 - Using influencers

- Persuasion
- Coercion
- Participation
 - Electoral pressure
 - Court action

Elections

Effective elections:

- Democratic components:
 - Regular
 - Free
 - Fair
- Functions of Elections:
 - Provide a means of peaceful political change
 - Ensuring there is democratic choice
 - Providing political legitimacy
 - Proving a mandate to carry out policies
 - Creating accountability through elections
 - Providing a legal basis to uphold laws

AUS:

- Suffrage
 - Case study: Roach v Electoral Commissioner (2007)
- Disqualification (s.44)
 - S.44(i)
 - Case study: Re Canavan
 - Reform?
 - S.44(ii)
 - Case study: Rod Culleton
 - S.44(iii)
 - Case study: Rod Culleton
 - S.44(iv)

- Case study: Sykes v Cleary (1992)
- S.44(v)
 - Case study: Bob Day
- Compulsory voting
 - Advantages v disadvantages
- Calling an election
- The Role of the AEC
- Terms: Senate v House
- Electorates: Multi member v Single member
- Electoral systems:
 - Majoritarian
 - Simple (FPP/Plurality)
 - How it works
 - Advantages v disadvantages
 - Absolute (PV)
 - How it works
 - Advantages v disadvantages
 - Proportional representation
 - STV
 - How it works
 - Advantages v disadvantages
 - GVT and 'preference whispering'
 - Case study: 2013 Senate Crossbench
 - 2016 Senate Ballot reforms
 - Pre v Post 2016 Ballot Paper
 - Case study: Bob Day challenge
 - The Senate 'balance of power'
- Case study: 2019 Federal Election

USA:

- Separation of Powers
- Suffrage
- Eligibility

- Impeachment process
- Non-compulsory voting
 - Advantages v disadvantages
- Terms
- Presidential electoral process
 - Primary & Caucus
 - National Conventions
 - Campaigns
 - General Election
 - Electoral College
 - Inauguration

Constitutional Sections

1

7

13

24

28

32

44

51

- (vi)
- (xxi)
- (xxvii)

52

53

54

57

58

61

64

71

90

108

109

115

128

Political Terminology

Liberal democracy

Constitutional monarchy

Bicameralism

- Senate
- House of Representatives

Constitutionalism

Separation of powers

Constitution

Referendum

Sovereignty

Federation

Federalism

- Coercive
- Cooperative
- Coordinate
- Confederation

Division of powers

- Exclusive powers
- Concurrent powers
- Residual powers

Representative democracy

Majority rule

Responsible parliamentary government

Cabinet

Ministry

Executive:

- Constitutional or formal executive
- Real or political executive
- Administrative executive or public service

Westminster convention

- Individual Ministerial Responsibility (IMR)
- Collective Ministerial Responsibility (CMR)

Autocracy

Suffrage / franchise

Secret Ballot

Electoral system

Electorate

Malapportionment

Gerrymander

Individual

Independent (MP)

Political Party

- Major
- Minor
- Micro

Delegate representation

Trustee representation

Partisan Representation

Mirror Representation

Hung parliament

Statutory law

Delegated legislation

Subordinate authorities

Gags

Guillotines

Flood-gating

Abrogate

Pressure Group

- Sectional
- Cause based
- Hybrid

Legal Terminology

The Rule of Law

Natural Justice

Judicial independence

Judicial power

Adversarial system

Inquisitorial system

Jurisdiction

Civil law system

Common law system

Civil law

Tort

ADR

- Negotiation
- Mediation
- Conciliation
- Arbitration

Balance of probabilities

Remedies:

- Damages
 - Compensatory
 - Nominal
 - Aggravated
 - Punitive
- Injunctions

Criminal law

Summary offence

Indictable offence

Jury

Beyond reasonable doubt

Litigation

Presumption of innocence

Onus of proof

Standard of proof

Relevance evidence

Hearsay evidence

Opinion evidence

Statutory interpretation

- Literal rule
- Golden rule
- Purpose rule (mischief rule)

Doctrine of Precedent

- Stare decisis
- Precedent
- Ratio decidendi

- Obiter dicta

- Distinguishing

- Overturning

- Reversing

- Disapproving

Mandatory sentencing

Mitigating circumstances

Aggravating circumstances

Appeal

Miscarriage of Justice